

25STCV02597 25STCV02597

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-20

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Case Number: 25STCV02597 Hearing Date: July 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 20, 2026

Case Name: Daley v. Siemens Industry, Inc., et al.

Case No.: 25STCV02597

Matter: Motions to Compel Further Responses (4x)

Ruling: Panasonic's Motion as to documents is granted.

Panasonic's Motion as to special interrogatories is granted in part.

Panasonic's Motion as to form interrogatories is granted.

Eco's Motion is continued.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On January 30, 2025, Plaintiff Douglas Daley filed the operative Complaint for (1) violation of Song-Beverly Act, (2) violation of Magnuson-Moss Act, (3) negligent repair, (4) breach of contract/implied covenant of good faith and fair dealing, (5)

fraud/concealment, (6) elder abuse, and (7) theft by false pretenses.

Plaintiff alleges as follows: Defendants Aviv Shitrit, Tal Shitrit, Eco Home Solutions, Inc., and others visited his home without solicitation; Defendants told Plaintiff that he needed to replace his solar panel, electrical panel, and HVAC system; Plaintiff refused; despite this, the Shitrits and others obtained a fraudulent loan in Plaintiff's name by forging his signature and then replaced the aforementioned components without consent; and the new solar panel, electrical panel, and HVAC system are defective and cannot be repaired.

There are now four Motions to Compel Further Responses at issue.

Panasonic's Three Motions

Defendant Panasonic Corporation of North America asserts three Motions to Compel as to Requests for Production (RFPs), Special Interrogatories (SIs), and Form Interrogatories (FIs).

RFPs

The Motion as to RFPs is granted. These RFPs seek basic information about the warranties and communications surrounding the defective solar panels. The objections lack merit, and it is not apparent why there would be responsive attorney-client communications, which in any case should be entered into a privilege log. Further responses and production are to be provided within 20 days. No sanctions.

SIs

The Motion is denied as to SI no. 1, which is unintelligible.

The Motion is granted as to SI nos. 2-5, which seek relevant communications or documents about the solar panels. The responses do not properly identify all information requested and often only assert generalities.

The Motion is granted as to SI nos. 7-8, 10-11 because the responses do not state all facts and defectively refer to other responses. Plaintiff should provide a straightforward response and stop referencing other responses.

The Motion is granted as to SI no. 9 because the response contains irrelevant information.

The Motion is granted in part as set forth herein.

Further responses are to be provided within 20 days.

FIs

The Motion is granted as to FI nos. 2.1, 2.2, 2.5, 2.6, 2.7, 2.8, 2.9, 2.10, 2.12, 4.1, 6.1, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 7.1, 7.2, 7.3, 8.1, 8.4, 8.7, 8.8, 9.1, 9.2, 10.2, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6 because these FIs seek basic information and Plaintiff improperly objected only that these FIs are duplicative and referenced his responses to other discovery.

Further responses are to be provided within 20 days.

Eco's One Motion

Eco Home Solutions Inc.'s Motion to Compel Further Responses is continued because of a service issue.

Moving party to give notice.